BEFORE THE NATIONAL COMPANY LAW TRIBUNAL,

PRINCIPAL BENCH

NEW DELHI

COMPANY PETITION CP (CAA) NO. 58(PB)/2018

CONNECTED WITH

COMPANY APPLICATION CA (CAA) NO. 150 (PB)/2017

In the matter of:

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016.

Judgement dated: 21.05.2018

Coram:

Present: CHIEF JUSTICE (Retd.) SHRI M.M. KUMAR,

Hon'ble President

SHRI S.K. MOHAPATRA,

Hon'ble Member (T)

In the matter of:

Sections 230 and 232 and other applicable sections and provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

AND

IN THE MATTER OF SCHEME OF ARRANGEMENT/DEMERGER OF

1. **DLF HOME DEVELOPERS LIMITED**

   COMPANY INCORPORATED UNDER THE COMPANIES ACT, 1956

   HAVING ITS REGISTERED OFFICE AT

   DLF CENTRE, SANSAD MARG,

   NEW DELHI – 110001

   ..... **PETITIONER NO.1 / DEMERGED COMPANY**

2. **DLF INFO CITY CHENNAI LIMITED**

   COMPANY INCORPORATED UNDER THE COMPANIES ACT, 2013

   HAVING ITS REGISTERED OFFICE AT

   DLF CENTRE, SANSAD MARG,

   NEW DELHI – 110001

   .....**PETITIONER NO. 2/RESULTING COMPANY**

Counsel for the Applicants: **Dr. U.K. Chaudhary, Senior Advocate**

Mr. Naveen Dahiya, Advocate

Ms. Manisha Chaudhary, Advocate

ORDER

M.M. KUMAR, PRESIDENT

1. This is a second motion Petition which has come up before us for admission and for fixing a date of hearing of the main Company Petition as well as for issuance of direction concerning publication of notices in press to be carried and notices to be issued to the authorities concerned including sectorial regulators, if any. The prayer also is to fix date of hearing of the Petition and calling for the objections, if any, to the Scheme of Arrangement/Demerger (hereinafter for brevity referred to as "SCHEME") between the Petitioner Companies.

2. From the records, it is seen that First Motion Application seeking direction for dispensing with the meetings of the respective shareholders of Petitioner Companies, secured and unsecured creditors of Petitioner No. 2 and holding of meetings of secured and unsecured of Petitioner No. 1 was filed before us being CA (CAA No. 150(PB)/2017. In that application, directions were issued for dispensation of the meetings of shareholders of Petitioner No. 1/Demerged Company and shareholders, secured and

unsecured creditors of Petitioner No. 2/ Resulting Company and for convening of meetings of secured and unsecured creditors of Petitioner No. 1/ Demerged Company. In compliance with the directions issued by the Tribunal, the meetings were duly held and to which effect the Chairperson appointed by the Tribunal has also filed his report as detailed herein under:

Meeting of	**Chairperson/Alternate Chairperson/Scrutinizer appointed by the Tribunal**	**Date of Meeting**	**Chairman's Report filed on**
Secured Creditors of Petitioner No. 1/Demerged Company	Mr. Anant Palli, Mr. Sakal Bhushan and Mr. Chaman Lal Goyal	24.03.2018	06.04.2018
Unsecured Creditors of Petitioner No. 1/Demerged Company	Mr. Anant Palli, Mr. Sakal Bhushan and Mr. Chaman Lal Goyal	24.03.2018	06.04.2018

3. The report of Chairperson shows that the meeting of unsecured creditors of Petitioner No. 1/ Demerged Company was duly convened and has

approved the Scheme. However, in the meeting of the secured creditors, no voting could take place in absence of quorum. Thereafter, the Petitioner No.1 filed an application being I.A No.137/PB/2018, wherein consents by way of affidavits of secured creditors of Petitioner No.1 constituting 99.99% of share value were placed on record and a prayer was made to dispense with the requirement of convening fresh meeting of secured creditors and liberty to file second motion petition was sought. In view of the above, the prayer was accepted and this Tribunal dispensed with the requirement of convening fresh meeting of secured creditors and liberty was granted to file second motion petition vide order dated 23.04.2018. Having fulfilled the requirements of various provisions, this petition for second motion has come up before us for fixing a date of hearing as well as for other consequential directions in terms of provisions of Sections 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromises, Arrangements and Amalgamation) Rules, 2016 and it is now hereby ordered as follows:

i. Notice of hearing shall be published in English Daily, "Indian Express" (Delhi Edition) and Hindi Daily "Jansatta" (Delhi Edition) not less than 10 days before the aforesaid date fixed for hearing.

ii. In addition to the above public notice, each of the Petitioner shall serve the notice of Petition on the following Authorities namely, (a) Ministry of Corporate Affairs through Regional Director (Northern

Region), (b) Ministry of Corporate Affairs; Registrar of Companies, NCT of Delhi and Haryana, (c) The Income Tax Department; and to such other Sectoral Regulatory Authorities who may govern the working of respective companies involved in the Scheme at least 30 days before the date fixed for hearing of the above Petition.

iii. Further, notice shall also be served to objector(s) or to their representative, if any, as contemplated under sub-section (4) of Section 230 of the Act along with copy of the Petition and Annexures who may have made representation and who desired to be heard in their representation at least 15 days before the date fixed for hearing;

iv. Both the Petitioners shall atleast 7 days before the date of hearing of the Petition file an affidavit of service in relation to publication in newspapers as well as service of notices on the Authorities specified above including the Sectoral Regulators and to Objectors, if any.

v. Objections, if any, to the Scheme contemplated by the authorities to whom notices have been given may be filed on or before the date of hearing fixed herein, failing which it will be considered that there is no objection to the approval of the Scheme on the part of the authorities and subject to other condition being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.

vi. The Petitioner Companies shall individually comply with proviso to sub section (3) of section 232 or proviso to sub section (7) of Section 230, as may be applicable under the circumstances on or before the date fixed for hearing by filing the certificate of Company's auditor.

vii. The next date of hearing of the Petition shall be on 06.07.2018 for the consideration of the approval of the Scheme of Arrangement as contemplated between the Petitioner Companies.

Sd/-

21.05.2018

(M.M. KUMAR)

PRESIDENT

Sd/-

(S.K. MOHAPATRA)

MEMBER (T)

Vidya